

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amarylis Rivera	Team: Team # 6	CCRB Case #: 201302056	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 03/21/2013 4:30 PM	Location of Incident: § 87(2)(b)	Precinct: 73	18 Mo. SOL 9/21/2014	EO SOL 9/21/2014	
Date/Time CV Reported Fri, 03/22/2013 10:05 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/22/2013 10:05 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Omar Birchwood	01886	945512	PSA 2
3. DT3 John Burchette	01806	903509	072 DET
4. LT Janice Holmes	00000	906881	073 PCT
5. POM Gregory Jurkovich	24047	952912	PSA 2
6. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Sonia Wakefield	04715	919840	072 DET
2. SGT Edwin Nuez	03792	935408	PSA 2
3. POM Jonathan Rivera	06577	949550	PSA 2
4. POM Sardar Mamun	23690	953044	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b) inside of § 87(2)(b) in Brooklyn.	
B.SGT Omar Birchwood	Force: Sgt Omar Birchwood used physical force against § 87(2)(b) inside of § 87(2)(b) in Brooklyn.	
C.SGT Omar Birchwood	Force: Sgt. Omar Birchwood struck § 87(2)(b) with an asp inside of § 87(2)(b) in Brooklyn.	
D. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) inside of § 87(2)(b) in Brooklyn.	
E.LT Janice Holmes	Discourtesy: Lt. Janice Holmes spoke discourteously to § 87(2)(b) inside of § 87(2)(b) in Brooklyn.	
F.DT3 John Burchette	Abuse: Det. John Burchette threatened to arrest § 87(2)(b) in front of § 87(2)(b) in Brooklyn.	
G.POM Gregory Jurkovich	Discourtesy: PO Gregory Jurkovich spoke discourteously to § 87(2)(b) inside of § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On March 22, 2013, § 87(2)(b) § 87(2)(b) filed this complaint on behalf of herself, § 87(2)(b) § 87(2)(b), and § 87(2)(b) with CCRB via telephone (encl.3A-B). On March 21, 2013, at approximately 4:30 p.m., officers responded to § 87(2)(b) § 87(2)(b) in Brooklyn. The following allegations occurred:

- **Allegation A- Force: Officers used physical force against § 87(2)(b) § 87(2)(b), and § 87(2)(b) inside of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation B- Force: Sgt. Omar Birchwood used physical force against § 87(2)(b) inside of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation C- Force: Sgt. Omar Birchwood struck § 87(2)(b) with an asp inside of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation D- Discourtesy: An officer spoke discourteously to § 87(2)(b) inside of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation E- Discourtesy: Lt. Janice Holmes spoke discourteously to § 87(2)(b) inside of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation F- Abuse of Authority: Det. John Burchette threatened to arrest § 87(2)(b) in front of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation G: Discourtesy: PO Gregory Jurkovich spoke discourteously to § 87(2)(b) inside of § 87(2)(b)**
§ 87(2)(g)
- § 87(4-b), § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/ Victim: § 87(2)(b)

- At the time of the incident, § 87(2)(b) was a § 87(2)(b) hispanic female. She § 87(2)(b) has brown hair and hazel eyes. § 87(2)(b) is a § 87(2)(b). § 87(2)(b) only speaks Spanish and has a very limited understanding of English.

Statements to Medical Personnel

§ 87(2)(a) PBH §18(6)

CCRB Statements

On March 22, 2013, § 87(2)(b) filed this complaint with the CCRB via telephone (*encl. 3A-B*); she also provided a statement to § 87(2)(b) on the same date (*encl. 4A*). On March 26, 2013 and July 15, 2013, § 87(2)(b) provided phone statements (*encl. 4B and 6A*). On April 4, 2013, she provided a written statement (*encl. 4C-F*) and on the same date provided a verified statement (*encl. 5A-H*). § 87(2)(g)

On March 21, 2013, § 87(2)(b) was working at § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(b) is a home attendant for § 87(2)(b) and § 87(2)(b) tenants of the above-mentioned address. At 4:10 p.m., § 87(2)(b) and § 87(2)(b) the son of § 87(2)(b) and § 87(2)(b) were eating at the kitchen table. On the kitchen table there was a fork and an 8-inch kitchen knife with a 5-inch blade (length) and a 3-inch black handle (length), which was being used by § 87(2)(b). § 87(2)(b) and § 87(2)(b) were seated in the living room.

There was a knock on the door. § 87(2)(b) stood up, and walked towards the door. She looked through the peephole and saw two officers, identified through the investigations as Det. Sonia Wakefield and Det. John Burchette of the 72nd Detective Squad, at the door. § 87(2)(b) did not say anything to them. She told § 87(2)(b) that there were two officers at the door, and returned to where she was seated. § 87(2)(b) opened the door and allowed Det. Wakefield and Det. Burchette inside. They only spoke English, and § 87(2)(b) did not know what was being said. The only thing she understood was when they asked for § 87(2)(b).

§ 87(2)(b) got up and stood behind § 87(2)(b). The entry door was open and Det. Wakefield was leaning against the door. Det. Burchette was standing on the right side of the entrance.

As Det. Burchette and § 87(2)(b) spoke, § 87(2)(b) spoke with his hands up and in front of him. He then placed his hands inside the pockets of the blue exercise shorts. § 87(2)(b) continued to speak with his hands, moving them up and down, but not removing them from his pockets. § 87(2)(b) occasionally raised his voice.

Det. Burchette moved forward towards § 87(2)(b) and § 87(2)(b) and § 87(2)(b) moved back into § 87(2)(b). Det. Burchette then talked into his radio. § 87(2)(b) did not understand what he had said. § 87(2)(b) told § 87(2)(b) to sit down and speak to the officers. § 87(2)(b) complied and sat in the living room. § 87(2)(b) stood in front of § 87(2)(b).

Three to four minutes after Det. Burchette's radio call, additional officers arrived. Approximately, twenty officers arrived on scene, but they arrived in groups, at different times.

A female officer grabbed § 87(2)(b) from behind by her collar and pulled her to the kitchen. § 87(2)(b) was unable to see the officer who had grabbed her, but described the officer to have thin/dainty hands of medium to dark complexion. As § 87(2)(b) was being pulled away, she observed an officer, no description provided, push § 87(2)(b). She did not see much of what occurred with § 87(2)(b). The female officer then pushed § 87(2)(b) into the refrigerator and told her in English not to move.

§ 87(2)(b) re-entered the living room, took out her cell phone, took photographs and then recorded what happened with § 87(2)(b). § 87(2)(b) was standing and he was hit once on his knee. She did not see what he was hit with, but she heard a loud thud. § 87(2)(b) then was on the floor. The officers, no description provided, kicked § 87(2)(b)'s legs, approximately six to seven times. A white male officer then handcuffed § 87(2)(b).

§ 87(2)(b) heard § 87(2)(b) pleading with the officers, in Spanish, not to hit her son. One of the officers was described a male officer, thirty-five year old, skinny, Haitian male, standing at 6'2" tall, with a dark hair and a thin face. The officer was identified, through the investigation, as Sgt. Birchwood, of PSA 2. Sgt. Birchwood then pushed § 87(2)(b) onto a large sofa with two open hands in front of him. § 87(2)(b) fell seated on the sofa. After Sgt. Birchwood pushed § 87(2)(b) he went to the kitchen for the remainder of the incident. A hispanic female officer, with brown hair and tan complexion entered the apartment the moment § 87(2)(b) was pushed. § 87(2)(b) stopped recording and went into the kitchen to get a cup of water for § 87(2)(b).

When § 87(2)(b) returned with a cup of water for § 87(2)(b) she heard the hispanic female officer tell § 87(2)(b) something in English. § 87(2)(b) now seated on the floor and handcuffed. § 87(2)(b) asked § 87(2)(b) what did the hispanic female officer tell her, and § 87(2)(b) responded that hispanic female officer told her not to cry for that dog.

§ 87(2)(b) was brought to a standing position. PO Jonathan Rivera of PSA 2, identified through the investigation, then approached § 87(2)(b) and told her, in Spanish, to take § 87(2)(b) and § 87(2)(b) to the bedroom. § 87(2)(b) told PO Rivera that she would not be going anywhere, that they would have to kill her alongside her son. As the officers and § 87(2)(b) traveled towards the hallway, § 87(2)(b) followed. She took out her cell phone, again, and started recording.

§ 87(2)(b) did not move any further than the front door; one foot was in the apartment and the other was in the hallway. § 87(2)(b) was next to § 87(2)(b). The hallway was full of police

officers. There was a black bag on top of a stretcher. § 87(2)(b) was thrown onto the stretcher and wrapped in the black bag.

§ 87(2)(b) recorded the incident in the hallway over Det. Burchette; he turned around and stated something to § 87(2)(b) in English. § 87(2)(b) asked § 87(2)(b) what Det. Burchette had just stated. Det. Burchette then grabbed her phone, touched the screen, and immediately returned the phone to § 87(2)(b). § 87(2)(b) informed her that Det. Burchette told her to stop recording, if not, he would arrest her.

The following day, § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) went to § 87(2)(b). § 87(2)(b) had pain in her lower back and a bruise on her left arm the size of a nickel, as a result of the push. She did not receive any treatment in § 87(2)(b), but was referred to a psychiatrist. As a result of the incident, § 87(2)(b) had pain on her arm and back; § 87(2)(b) had pain on the side of his rib.

§ 87(2)(b) did not provide the investigation with any photographs. On April 18, 2014, a phone call was placed to IAB Computer Crimes Investigation and informed of the circumstance regarding § 87(2)(b)'s potentially erased cell phone footage (*encl. 47I-J*). The investigation was informed that the recovery of the footage would highly unlikely happen, due the duration of time, and the make and model of her cell phone. § 87(2)(g)

Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b) hispanic male; he stands § 87(2)(b), and is bald with green eyes. § 87(2)(b) is § 87(2)(b)*

Statements to the Medical Personnel of § 87(2)(b) and § 87(2)(b):

§ 87(2)(a) PBH §18(6)

CCRB Statements

On April 4, 2013, § 87(2)(b) provided a verified statement (*encl. 7A-L*) and on July 15, 2013, he provided a phone statement (*encl. 8A*). § 87(2)(g)

On March 21, 2013, § 87(2)(b) was at his parents' home along with his parents and § 87(2)(b). When Det. Wakefield and Det. Burchette, § 87(2)(b) informed them that he had spoken to Det. Wakefield over the phone and agreed to turn himself in on Monday, March 25, 2013. Det. Wakefield was calm, but Det. Burchette spoke loudly and aggressively.

Det. Burchette told § 87(2)(b) that they were there to arrest him and were not leaving without him. § 87(2)(b) told Det. Burchette "Fuck you; you are not talking to me like that in front of my family. Do what you got to do, but you are not arresting me," and he threatened to jump off the balcony.

He spoke with his hands, but he did not try to reach for or grab anything or place his hands in his pockets. Det. Wakefield subsequently stepped forward and placed her hand on her gun, but did not open the holster. Det. Burchette moved behind Det. Wakefield and used his radio. § 87(2)(b) did not hear what he stated over the radio.

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) pleaded for him to calm down, and § 87(2)(b) stood in front of him after he sat down in the living room. § 87(2)(b) then calmed down. Det. Wakefield and Det. Burchette never moved from their location at the front door, throughout the entire incident.

Approximately ten officers responded two minutes after Det. Burchette's radio call. The officers rushed into the apartment, said nothing, and pushed § 87(2)(b) aside to get to § 87(2)(b) PO Rivera and an unidentified officer attempted to pull his arms back, but § 87(2)(b) pulled his arms forward and tried to free himself from their grasps. A third officer stood in front of § 87(2)(b) and grabbed him by his collar. § 87(2)(b) was lifted and moved three feet away from the chair.

A sergeant described as a black male, in his forties, standing approximately 5'4" to 5'5" tall, with salt and pepper hair, dark complexion, with a Haitian or Trinidadian accent, identified through the investigation as Sgt. Omar Birchwood, of PSA 2, walked behind § 87(2)(b) and kicked § 87(2)(b) three times on the back of his left knee. Sgt. Birchwood then punched § 87(2)(b) once on the back of his head. Sgt. Birchwood then struck § 87(2)(b) once on his right bicep with an asp. § 87(2)(b) immediately went down to the floor, and laughed at the officers. As he was going down, an officer handcuffed his left wrist. There were a total of five to eight officers on top of § 87(2)(b). One of the officers requested another set of handcuffs to use on § 87(2)(b). As he was on the ground § 87(2)(b) informed the officers that he had a pacemaker.

During the previous struggle, § 87(2)(b) pleaded with § 87(2)(b) to get down and allow the officers to arrest him. § 87(2)(b) was not sure if § 87(2)(b) was moving towards him, but he observed a white, heavy set female officer push § 87(2)(b) into the wall. The white female officer then grabbed § 87(2)(b) and pushed her into the kitchen. Finally, the white female officer approached § 87(2)(b) and placed her knee on his back. § 87(2)(b) told her that he was unable to breathe, and she responded, "I don't care, shut the fuck up, 200 pounds of force." § 87(2)(b) was subsequently handcuffed and brought to a seated position. Sgt. Birchwood then grabbed § 87(2)(b) by both arms and told her she needed to shut up and calm down or go to another room.

Lt. Janice Holmes, of the 73rd Precinct, identified through the investigation, arrived on the scene. § 87(2)(b) described Lt. Holmes as a black female with short "salt and pepper" hair styled in braids, skinny frame, with a drawn face, dressed in a uniformed white shirt and blue pants. Lt. Holmes told § 87(2)(b) to shut the "fuck" up, because her son was an animal. In his July 15, 2013, phone statement, § 87(2)(b) stated that Lt. Holmes told § 87(2)(b) that her son was a "fucking" animal, and did not mention that Lt. Holmes told § 87(2)(b) to shut the "fuck" up. Lt. Holmes then instructed Det. Burchette to remove two kitchen knives from the cabinets.

An ESU officer arrived and informed § 87(2)(b) that they were waiting for EMS, because he was informed that § 87(2)(b) was going to jump out the window and that he was in possession of two knives. § 87(2)(b) was then picked up from the floor by two officers and they all walked out of the apartment.

As they were walking, § 87(2)(b) asked § 87(2)(b) to start recording. § 87(2)(b) followed them out, with her cell phone in her hand. When they arrived at the front door, Det. Burchette told her to give him the phone. Det. Burchette then grabbed the phone from § 87(2)(b)'s hand. § 87(2)(b) was wrapped in a bag, strapped to a stretcher and taken to § 87(2)(b) with PO Rivera.

At the hospital, § 87(2)(b) was taken out of the bag and cuffed to a hospital bed. § 87(2)(b) told an officer, who the investigation identified as PO Gregory Jurkovich, of PSA2, that the handcuffs were too tight, and he responded, "We are not doing anything for you, you're an asshole." § 87(2)(b) was admitted into the psychiatric ward, and released on § 87(2)(b).

During this incident, § 87(2)(b) sustained bruises on his right arm and scratches on his left wrist caused by the handcuffs. Photographs of § 87(2)(b)'s injury sites were taken at the CCRB on April 4, 2013 (*encl. 7H-J*), revealing a bruise on his right bicep, a bruise, and small laceration on his left wrist. § 87(2)(b) had also taken photographs of his injuries, but did not have the photographs with him on the date of his interview, but he did not provide them to the investigation thereafter.

Victims: § 87(2)(b) AND § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b) hispanic male. He stands § 87(2)(b) and has white/greyish hair and brown eyes.*
- *At the time of the incident § 87(2)(b) was § 87(2)(b) hispanic female. She stands § 87(2)(b) and has blonde hair and green eyes.*
- *Both, § 87(2)(b) and § 87(2)(b) § 87(2)(b); they mostly speak Spanish, but thoroughly understand English.*

Statements to Medical Personnel

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Statements

On April 5, 2013, § 87(2)(b) provided a verified telephone statement (*encl. 9A-F*), and on July 23, 2013, provided a second phone statement (*encl. 10A*). On March 26, 2013 and July 15, 2013, § 87(2)(b) provided phone statements (*encl. 11A and 13A*). On April 4, 2013, § 87(2)(b) provided a written statement (*encl. 11B-D*) and on April 8, 2013, provided a verified telephone statement (*encl. 12A-F*). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) In addition, § 87(2)(b) threatened to jump off the balcony and Det. Wakefield and Det. Burchette did not move from the entrance of the apartment.

§ 87(2)(g)

§ 87(2)(b) Shortly after, approximately ten to twenty officers arrived.

§ 87(2)(b) stated that as they approached § 87(2)(b) a white female officer pushed him § 87(2)(b) against the wall and told him that he had to move. A male officer described as a thin Jamaican or Haitian male, approximately 6'2"- 6'7" tall, dark complexion, in his fifties, dressed in uniform, identified through the investigation as Sgt. Birchwood, pushed § 87(2)(b) by extending his right hand, and § 87(2)(b) fell onto a chair. Sgt. Birchwood told her to shut up and not to move, and a black female officer, believed to be Det. Wakefield, pushed § 87(2)(b) away from § 87(2)(b).

§ 87(2)(b) stated that she pleaded with Sgt. Birchwood not to hurt her son, and that Sgt. Birchwood had pushed her after § 87(2)(b) was on the ground and the officers attempted to handcuff him. She did not observe an officer push § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) resisted their efforts by pulling his arms forward, moving front and back, and twisting his body.

§ 87(2)(b) alleged that while § 87(2)(b) was in a standing position, an officer, described as a white male, thirty to thirty-five years old, standing 6'0" to 7'0" tall, struck him with an asp, on the back of his knees. § 87(2)(b) stated that rather than one officer it was four male officers that struck § 87(2)(b) on the back of his knees. § 87(2)(b) then fell onto the ground in a seated position. The officers then kicked § 87(2)(b) approximately two to seven times in his midsection, legs and back. § 87(2)(b) screamed that he did not want to be arrested, while moving from side to side. The officers then brought § 87(2)(b) on the ground, faced-down. They also punched § 87(2)(b) in the same areas they had kicked him, including his arms.

§ 87(2)(b) stated that when § 87(2)(b) was faced-down on the ground he informed the officers that he was choking; § 87(2)(g). A black heavy-set female officer was on top of § 87(2)(b) and stated that she did not care, and three hundred pounds of force was on him. § 87(2)(b) § 87(2)(g), but stated that there were two officers, unable to describe, were top of § 87(2)(b) and he made no mention of any officer state that they did not care, three hundred pounds of force. § 87(2)(b) was then handcuffed after three minutes, brought to a seated position, and § 87(2)(b) then brought him some water.

§ 87(2)(b) was crying, and Lt. Holmes, a black female, with short black hair, approximately thirty to thirty-six years old, dressed in a uniformed white shirt and blue pants, told her not to cry for her son, because he was a dog. § 87(2)(g)

§ 87(2)(b) was carried to the hallway. § 87(2)(b) then started recording with her phone what was occurring in the hallway. § 87(2)(b) stated that Det. Burchette attempted to grab § 87(2)(b)'s phone, but was unable to. Det. Burchette then said something to § 87(2)(b) but § 87(2)(b)

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CCRB-Confidential

§ 87(2)(b) could not recall what he said. § 87(2)(g)

On § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) went to § 87(2)(b) to obtain medical attention for the injuries they sustained the day before. § 87(2)(b) and § 87(2)(b) were each given an injection for muscle pain and prescribed muscle relaxers.

NYPD Statements:

Witness/Arresting Officer: DET. SONIA WAKEFIELD

- *At the time of the incident Det. Wakefield was a § 87(2)(b)-old black female. She stands § 87(2)(b), and has black hair and brown eyes.*
- *On March 21, 2013, Det. Wakefield worked from 5:15 a.m. to 12:48 a.m., March 22, 2013. Det. Wakefield was assigned as the domestic violence detective in the 72nd Precinct Detective Squad. She worked with Detective John Burchette, was dressed in plainclothes and assigned to an unmarked vehicle.*

Memo Book:

At 3:45 p.m., Det. Wakefield was at § 87(2)(b) and at 6:30 p.m. returned to her command (encl. 14A).

Arrest Reports and Criminal Court Complaint (encl. 34D-I and 37A-B)

Report for arrest number § 87(2)(b) § 87(2)(a) 160.50

Report for arrest number § 87(2)(b) § 87(2)(a) 160.50

Property Voucher (encl. 35A-B)

At the time and place of occurrence, § 87(2)(b) did display two black handle stainless steel kitchen knives in a threatening manner while officers were effecting a lawful arrest. § 87(2)(b)s actions placed the officers in fear of serious injury and/or death.

DD5s (encl. 36A-N)

On March 21, 2013, at approximately 4:00 p.m., § 87(2)(b) was apprehended in response to complaint of criminal contempt at his residence, § 87(2)(b) Brooklyn, NY. § 87(2)(b) was apprehended after a struggle which resulted from the suspect menacing Det. Wakefield and Det. Burchette, with two knives. § 87(2)(b) was subsequently admitted to § 87(2)(b) for a psychiatric evaluation.

Other Evidence (encl. 15E)

On May 22, 2014, Det. Wakefield provided the investigation with a color photograph of the vouchered knives. Both knives have black handles and blades approximately six and a half inches in length.

CCRB Testimony

On May 22, 2014, Det. Sonia Wakefield was interviewed at the CCRB (encl.15A-D).

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CCRB-Confidential

On March 21, 2013, Det. Wakefield received a complaint regarding a violated order of protection. At 1:00 p.m., Det. Wakefield called § 87(2)(b) and informed him that a complaint had been filed against him and she needed to speak with him. § 87(2)(b) informed Det. Wakefield that he would arrive at the stationhouse to discuss the matter on Monday, March 25, 2013. Det. Wakefield usually calls the perpetrators prior to visiting them, to ensure they are present at the location.

At 1:45 p.m., Det. Wakefield and Det. Burchette arrived at § 87(2)(b) § 87(2)(b) in Brooklyn, to arrest § 87(2)(b) for the above complaint. Det. Wakefield knocked on the door and § 87(2)(b) answered the door. Det. Wakefield introduced herself and her partner, and added that they needed to speak to § 87(2)(b). § 87(2)(b) emerged from the rear of the apartment, and stood behind § 87(2)(b).

§ 87(2)(b) was upset, and informed Det. Wakefield and Det. Burchette that he was going to turn himself in on Monday (March 25, 2013.) Det. Burchette informed § 87(2)(b) that they needed to speak to him at that moment. However, neither Det. Wakefield nor Det. Burchette mentioned anything about arresting § 87(2)(b). § 87(2)(b) responded that if they were going to take him they would have to take him down, and he entered the kitchen. Det. Wakefield and Det. Burchette were unable to see § 87(2)(b).

§ 87(2)(b) reemerged and ran toward the detectives with two butcher knives. § 87(2)(b) held a knife in each hand in front of him, and was fixated on Det. Burchette. Det. Wakefield instructed Det. Burchette to call for assistance over the radio, and then Det. Wakefield removed her gun. § 87(2)(b)'s family started to scream and yell.

§ 87(2)(b) standing near the detectives, swung her arm and knocked Det. Wakefield's gun from her hand, causing the gun to fall onto the ground. Det. Wakefield believed that § 87(2)(b) swung her arm in an attempt to block and prevent Det. Wakefield from shooting at § 87(2)(b). Det. Wakefield did not say anything to § 87(2)(b) in response to her actions, nor did she threaten to arrest her. § 87(2)(g)

Det. Wakefield briefly turned around to retrieve her gun, while § 87(2)(b) was advancing towards them. Det. Wakefield stood up and observed § 87(2)(b) was approximately a foot away from Det. Burchette, with both knives in hand. § 87(2)(b), § 87(2)(b) and § 87(2)(b) were in between Det. Burchette and § 87(2)(b) and pushed him away from the detectives, toward the rear of the living room. Det. Burchette then used his radio to call for assistance.

§ 87(2)(b) stated that he was going to jump off the balcony and advanced towards the balcony door located at the rear of the apartment. His family struggled with and attempted to restrain to § 87(2)(b). The detectives did not move from their location, or assist the family in restraining § 87(2)(b) but waited for the arrival of the responding officers. The family was able to calm § 87(2)(b) and guided him towards a nearby seat. One of the family members removed the knives from § 87(2)(b).

The responding officers arrived within a minute of the call. Det. Wakefield did not know from which command they were from, but stated that there was only one female officer among the responding officers.

The officers informed § 87(2)(b) approximately three times that he had to go with them. § 87(2)(b) refused. About three officers then pulled § 87(2)(b) from the chair and attempted to handcuff him.

§ 87(2)(b) screamed, and whenever the officers would attempt to pull his hands toward his back, § 87(2)(b) will pull forward and flex his arms to prevent from being handcuffed. After three minutes of struggle, the officers were able to handcuff § 87(2)(b). § 87(2)(b) is a large male, and all three officers were needed to handcuff him. However, they did not punch, kick, or use any weapons to handcuff § 87(2)(b). None of the officers, had their knee on § 87(2)(b)'s back or told him to shut the “fuck” up and “two-hundred pounds of force.”

§ 87(2)(b) was crying, but neither she nor § 87(2)(b) interfered with the officers. They remained in a corner of the living room walking back and forth. Det. Wakefield did not observe any officer push them aside. The only interference she encountered was when § 87(2)(b) knocked her weapon from her hand. That was the only physical contact she had with § 87(2)(b). She did not grab or pull § 87(2)(b) at any point of the incident.

One of the patrol supervisors contacted ESU to help remove § 87(2)(b). Det. Wakefield stepped out into the hallway and contacted her supervisor Lt. Nicholas Fiore to advise him to stop by the location. She remained in the hallway for a short period time, approximately ten to fifteen minutes. Lt. Holmes of the 73rd Precinct arrived on scene; she assessed the incident, called to see if ESU was coming and then left the scene. When ESU arrived, Det. Wakefield's supervisor also arrived, and all entered the apartment.

Det. Wakefield could not recall if § 87(2)(b) was seated or lying on the ground, when she reentered the apartment. § 87(2)(b) refused to be moved from the living room, and the officers had to pull § 87(2)(b) out of the apartment into the hallway. The officers then carried him and placed him in a bag.

Det. Wakefield did not hear § 87(2)(b) complain of any injuries. She did not observe any injuries on § 87(2)(b). Det. Wakefield remained inside of the apartment to help console § 87(2)(b). However, neither she nor another officer told § 87(2)(b) to shut the “fuck” up and stop crying for “that fucking animal.”

When with § 87(2)(b) Det. Wakefield observed § 87(2)(b) recording with her cell phone. Det. Burchette told § 87(2)(b) in summation, that it was not right to record only a portion of the incident rather than the entire incident, especially when § 87(2)(b) ran towards the detectives with knives. § 87(2)(b) subsequently put her cell phone away. Det. Burchette did not grab or rummage through her phone, nor did he threaten to arrest § 87(2)(b). § 87(2)(b) was taken out of the building into an ambulance and was taken to a hospital as an EDP.

Witness Officer: DET. JOHN BURCHETTE

- *At the time of the incident, Det. Burchette was a § 87(2)(b)-old black male. He § 87(2)(b) has black hair and brown eyes.*
- *On March 21, 2013, Det. Burchette worked from 5:15 a.m. to 9:45 p.m. Det. Burchette was partnered with and worked the same assignment as Det. Wakefield.*

Memo Book

On March 21, 2013, at 2:50 p.m., Det. Burchette followed-up on a complaint report with Det. Wakefield at § 87(2)(b), in RMP #235 (encl. 16A).

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CCRB-Confidential

CCRB Testimony

On May 23, 2014, Det. John Burchette was interviewed at the CCRB (*encl. 17A-C*).

§ 87(2)(g) . Det. Burchette stated that § 87(2)(b) only exited the kitchen, once, holding one knife with a six-inch blade in his hand at shoulder-level. § 87(2)(b) lunged at Det. Burchette and Det. Wakefield, and the both reacted by pulling out their guns. § 87(2)(g) was approximately four to five feet away from the detectives.

§ 87(2)(b) knife at hand, threatened to take his own life, then walked towards the door to the terrace and threatened to jump off. The family pushed § 87(2)(b) away from the terrace, and § 87(2)(b) then lunged towards the detectives. Again, the family managed to get between § 87(2)(b) and the detectives and push him back to the rear of the living room.

Det. Burchette radioed for police assistance. Det. Burchette and both he and Det. Wakefield remained inside of the apartment. Within minutes, impact officers and sergeants from an unknown command, unknown to Det. Burchette, responded.

The officers ordered that § 87(2)(b) drop the knife, several times. § 87(2)(b) did not comply, continued to yell and did not drop the knife. The officers then pushed § 87(2)(b) onto the ground. Det. Burchette elaborated that they brought § 87(2)(b) to the ground by his arms. It took a while for the officers to grab § 87(2)(b) because he had a knife. There were approximately five officers with § 87(2)(b) at this moment. The officers then placed § 87(2)(b)'s hands behind his back and Det. Burchette handcuffed him. Neither he nor the responding officers punched, kicked, or used any additional weapons to subdue § 87(2)(b).

The family did not interfere with the apprehension of § 87(2)(b) although they were screaming and paced back and forth. None of the officers grabbed, pushed, or pulled any of the family members.

Det. Burchette recalled that there were female officers present during the interaction, one of which was a supervisor. Det. Burchette could not recall if the female supervisor was a sergeant or a lieutenant, and stated that she could have possibly been hispanic or black, and could not recall if she was heavyset or thin. Det. Burchette could not recall if any female officers told § 87(2)(b) to shut the “fuck” up or told § 87(2)(b) to shut the “fuck” up and not cry for that “fucking animal.” Det. Burchette could not recall if any female officer used any profanity against § 87(2)(b) or his family.

Once ESU responded, § 87(2)(b) recorded the bagging of § 87(2)(b) with her cell phone. Det. Burchette asked her why she was only recording the conclusion of the incident, rather than the entire incident, specifically, when § 87(2)(b) charged at the detectives with a knife. § 87(2)(b) put her phone away shortly thereafter. Det. Burchette did not grab her phone, nor did he threaten to arrest § 87(2)(b). Det. Burchette could not recall if another officer threatened to arrest her.

§ 87(2)(b) was taken to the hospital and Det. Burchette and Det. Wakefield returned to their command. Det. Wakefield vouchered the knife used by § 87(2)(b) but Det. Burchette could not recall how or who recovered the knife.

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CCRB-Confidential

In § 87(2)(b) § 87(2)(b) did not complain of any injuries. In addition, Det. Burchette did not observe any injuries on § 87(2)(b)

Subject Officer: SGT. OMAR BIRCHWOOD

- *At the time of the incident, Sgt. Birchwood was a § 87(2)(b)-old black male. He § 87(2)(b) has black hair and brown eyes.*
- *On March 21, 2013, Sgt. Birchwood worked from 9:50 a.m. to 6:47 p.m. He was assigned as the impact sergeant and worked with PO Kevin Fulham. He was dressed in uniform and was assigned to marked RMP# 9088.*

Memo Book

At 4:30 p.m., additional units requested by the 72nd Squad at § 87(2)(b) § 87(2)(b) one perpetrator in custody going to § 87(2)(b) (encl. 20A-C).

CCRB Testimony

On June 2, 2014, Sgt. Omar Birchwood was interviewed at the CCRB (encl. 21A-C).

On March 21, 2013, at approximately 4:30 p.m., Sgt. Birchwood and his operator, PO Fulham, arrived at § 87(2)(b) § 87(2)(b) in Brooklyn, after receiving a radio call from the 72nd Squad for additional units. When he arrived, there were many officers on scene, from both PSA 2 and the 73rd Precinct, and two detectives, who were standing near the apartment door. Sgt. Birchwood was informed by the detectives that § 87(2)(b) had pulled a knife on the detectives. § 87(2)(b) was seated at the rear of the living room.

Officers told § 87(2)(b) that he was going to be arrested. As the responding officers, including Sgt. Birchwood, approached § 87(2)(b) they commanded that he get up from the chair. § 87(2)(b) attempted to put his hands away, but Sgt. Birchwood and additional officers grabbed onto § 87(2)(b) arms. § 87(2)(b) was a large male, weighing approximately two hundred and fifty pounds, and there were multiple officers holding onto each of § 87(2)(b)s arms. § 87(2)(b) flailed his arms, and when officers pulled his arms back, § 87(2)(b) pulled them forward.

Sgt. Birchwood and the other officers were able to bring § 87(2)(b) down to the ground using only his arms. They placed his arms behind his back and handcuff him. After § 87(2)(b) was handcuffed, he started to yell and act “crazy,” so ESU was contacted.

Neither Sgt. Birchwood nor any other officer punched and/or kicked § 87(2)(b). Neither Sgt. Birchwood nor any other officer punched § 87(2)(b) on his head and/or used an asp or baton on § 87(2)(b). Sgt. Birchwood could not recall if any officer had a knee on § 87(2)(b)s back or if any officer told § 87(2)(b) to “shut the fuck up, two hundred pounds of force.” He did not recall any officer using any profanity against § 87(2)(b). Sgt. Birchwood could not recall if there were any heavy set female officers on scene.

§ 87(2)(b) and § 87(2)(b) were yelling at the officers and were very close to the officers as they were trying to handcuff § 87(2)(b). The officers had to move them back, it was not elaborated specifically how they moved § 87(2)(b) and § 87(2)(b). However, he could not recall if he had to move either § 87(2)(b) or § 87(2)(b). Sgt. Birchwood did not recall pushing § 87(2)(b) nor did he recall any other officer pushing her. Sgt. Birchwood did not recall § 87(2)(b) being pushed during the encounter.

Sgt. Birchwood remembered a female lieutenant of the 73rd Precinct present on scene, but he did not recall if she spoke to § 87(2)(b) or tell her “don’t cry for that fucking animal.”

Once § 87(2)(b) was handcuffed, Sgt. Birchwood left. As he was walking out in the hallway, he observed someone with a cell phone, but did not know if it was recording. Sgt. Birchwood did not observe any officers interact with the individual and the cellphone nor did he hear anyone threaten to arrest the individual with the cellphone.

Subject Officer: LT. JANICE HOLMES

- *At the time of the incident, Lt. Holmes was a § 87(2)(b)-old black female. She § 87(2)(b) has black hair and brown eyes. Lt. Holmes has since been promoted to captain.*
- *On March 21, 2013, Lt. Holmes worked from 2:45 p.m. to 11:30 p.m. She was the Patrol Platoon Commander and worked with PO Jestin Herbert. She was dressed in uniform and was assigned to marked car, RMP# 3984.*

Memo Book

Lt. Holmes did not have entries in her memo book regarding this incident (encl. 24A-B).

CCRB Testimony

On June 25, 2014, Lt. Janice Holmes was interviewed at the CCRB (encl. 25A-B).

When Lt. Holmes and PO Herbert, arrived at § 87(2)(b) § 87(2)(b) in Brooklyn, § 87(2)(b) was handcuffed and seated on the floor in the living room; four officers stood next to § 87(2)(b)

Lt. Holmes only spoke to Det. Wakefield and Det. Burchette, who were awaiting the arrival of ESU. Lt. Holmes and PO Herbert left the scene, prior to the arrival of ESU.

Lt. Holmes did not speak to any civilians on scene, nor did she tell § 87(2)(b) to “shut the fuck up and not to cry for that fucking animal.” Lt. Holmes did not use any profanity on scene. In addition, she did not hear § 87(2)(b) complain of any injuries.

Subject Officer: PO GREGORY JURKOWICH

- *At the time of the incident, PO Jurkovich was a § 87(2)(b)-old white male. He § 87(2)(b) has brown hair and blue eyes.*
- *On March 21, 2013, PO Jurkovich worked from 10:00 a.m. to 6:35 p.m. At 4:00 p.m., PO Jurkovich was assigned to the Van Dyke Houses, and partnered with PO Sardar Mamun. He was dressed in uniformed and was working on foot.*

Memo Book

At 4:10 p.m., responded to a radio call for additional units at § 87(2)(b) § 87(2)(b), for and emotionally disturbed person. At § 87(2)(b) resumed patrol to hospital with the perpetrator, § 87(2)(b) being transported to § 87(2)(b). Arrived at the hospital § 87(2)(b), relieved from § 87(2)(b) by PO Tocci (shield # 31349) and PO Prybacki (shield# 22988) (encl. 26A-C).

CCRB Testimony

On August 7, 2014, PO Gregory Jurkovich was interviewed at the CCRB (encl. 27A-B).

When PO Jurkowich and PO Mamun arrived at § 87(2)(b) § 87(2)(b) was seated on the floor, and handcuffed.

ESU arrived shortly after PO Jurkowich's arrival. PO Jurkowich and PO Mamun travelled with § 87(2)(b) to the hospital.

When they had arrived at the hospital, § 87(2)(b) was still upset and told PO Jurkowich and PO Mamun that they were lucky that he was handcuffed. § 87(2)(b) verbally threatened PO Jurkowich and PO Mamun, but PO Jurkowich could not specifically recall what § 87(2)(b) stated.

PO Jurkowich did not recall if § 87(2)(b) complained that his handcuffs were tight or requested that he loosen them. PO Jurkowich did not recall he or PO Mamun saying "we are not doing anything for you, you're an asshole."

Witness Officer: SGT. EDWIN NUEZ

- At the time of the incident, Sgt. Nuez was a § 87(2)(b)-old hispanic male. He § 87(2)(b) has black hair and brown eyes.
- On March 21, 2013, Sgt. Nuez worked the same tour and assignment as Sgt. Birchwood. He worked with PO Jonathan Rivera, was dressed in uniform and assigned to a marked car, RMP# 9053.

Memo Book

At 4:01 p.m., additional units called by the 72nd Squad at § 87(2)(b) At 4:04 p.m., arrived at location, and at 4:55 p.m., the 72nd Squad held the suspect inside. The prisoner/EDP was then removed to § 87(2)(b) (encl. 18A-C).

CCRB Testimony

On May 28, 2014, Sgt. Edwin Nuez was interviewed at the CCRB (encl. 19A-C).

Sgt. Nuez and PO Rivera, arrived at the location and observed Det. Wakefield and Det. Burchette standing outside of the apartment. They informed Sgt. Nuez, that they attempted to arrest § 87(2)(b) but he had refused. They recovered a knife from § 87(2)(b) and either Det. Wakefield or Det. Burchette showed the knife to Sgt. Nuez. They pointed inside of the apartment and Sgt. Nuez observed § 87(2)(b) standing next to a window, and § 87(2)(b) screaming.

Sgt. Nuez, PO Rivera, and Sgt. Birchwood, entered the apartment and commanded § 87(2)(b) to turn around and place his hands behind his back, multiple times. § 87(2)(b) seated on the couch, refused to do so each time. § 87(2)(b) crossed his arms in front of him. They surrounded § 87(2)(b) on the couch, and Sgt. Nuez and PO Rivera grabbed onto one of § 87(2)(b)'s arms. Sgt. Birchwood and another officer grabbed § 87(2)(b)'s second arm.

The officers tried to pull § 87(2)(b) arms towards his back, but § 87(2)(b) pulled his arms forward and leaned back on the couch preventing the officers from placing his hands behind his back. § 87(2)(b) was pushed slightly forward and was brought onto the ground. However, no officers punched, kicked, or used any weapons against § 87(2)(b). In addition, no officers placed their knee on § 87(2)(b)'s back. The officers managed to handcuff § 87(2)(b) a minute later. § 87(2)(b) moved his head and body from side to side, after he was handcuffed.

§ 87(2)(b) was seated, hysterically crying and screaming, but she did not interfere with the apprehension of § 87(2)(b). Sgt. Nuez did not recall if she remained seated throughout the incident. However, § 87(2)(b) kept getting in the officer's way, and did not comply with the officers' request to take § 87(2)(b) away from the scene. However, no officer grabbed, pushed or pulled § 87(2)(b) and/or § 87(2)(b). The officers only verbally informed § 87(2)(b) that she was not supposed to get in the officers' way.

§ 87(2)(b) was removed ambulance and taken to § 87(2)(b) for a psychiatric evaluation. § 87(2)(b) did not complain of any medical conditions or of any injuries/pain. Sgt. Nuez did not observe any injuries on § 87(2)(b).

Lt. Holmes arrived on scene. Sgt. Nuez did not recall if Lt. Holmes spoke with § 87(2)(b) at any point, but stated that he did not hear her or any other officer state not to cry about the "fucking animal." None of the officers on scene used any profanity against any of the civilians. Sgt. Nuez could not recall any additional uniformed officer on scene, especially any heavyset female. Sgt. Nuez did not observe § 87(2)(b) recording anything during the encounter.

Witness Officer: PO JONATHAN RIVERA

- *At the time of the incident, PO Rivera was a § 87(2)(b)-old hispanic male. He § 87(2)(b) has black hair and brown eyes.*
- *On March 21, 2013, PO Rivera worked from 10:00 a.m. to 6:35 p.m. PO Rivera was the operator for Sgt. Nuez. He was dressed in uniform and assigned to marked RMP# 9053.*

Memo Book

At 4:01 p.m., The 72nd Squad called for additional units to respond to § 87(2)(b). § 87(2)(b) At 4:04 p.m., arrived at location, and at § 87(2)(b) one arrest made by the 72nd Squad and removed by EMS to § 87(2)(b) (encl. 22A-D).

CCRB Testimony

On June 5, 2014, PO Jonathan Rivera was interviewed at the CCRB (encl. 23A-B).

Inside of the living room, PO Rivera assisted the detectives with § 87(2)(b) by holding one of his forearms. Neither PO Rivera nor any other officer on scene punched, kicked or used any weapons to subdue § 87(2)(b). § 87(2)(b) was standing, but ended up seated and handcuffed. ESU bagged him and took § 87(2)(b) to the § 87(2)(b) as an EDP. § 87(2)(b) did not complain of any injury.

PO Rivera could not recall if § 87(2)(b) interfered with the officers, or walked towards the officers while they were apprehending § 87(2)(b). He did not recall if an officer pushed her aside.

No officer told § 87(2)(b) to "Shut the fuck up, two hundred pounds of force," and no officer said not to cry for that "fucking animal." None of the officers present on scene, including PO Rivera, used any profanity against the civilians. PO Rivera did not recall § 87(2)(b) recording the incident with her cell phone, nor if one of the officers threatened to arrest her.

PO Rivera did not travel with § 87(2)(b) to § 87(2)(b).

Witness Officer: PO SARDAR MAMUN

- At the time of the incident, PO Mamun was a § 87(2)(b)-old Asian male. He § 87(2)(b) has black hair and brown eyes.
- On March 21, 2013, PO Mamun worked the same tour and assignment as PO Gregory Jurkovich.

Memo Book

PO Mamun has the same memo book entries of PO Jurkovich, with the exception of his 5:35 p.m., entry when he called PSA 2, spoke with Sgt. Fox for requesting relief of their hospital assignment (*encl. 28A-E*).

CCRB Testimony

On August 7, 2014, PO Mamun was interviewed at the CCRB (*encl. 29A-B*). Besides his memo book entries, he did not have any recollection of the incident.

Medical Records

§ 87(2)(b)
§ 87(2)(b) (*encl. RM1-25/confidential file*):
§ 87(2)(a) PBH §18(6)

§ 87(2)(b)
Medical Treatment of Prisoner Report (*encl. PM3-4/confidential file*):

§ 87(2)(a) PBH §18(6)

§ 87(2)(b) (*encl. PM5-24/ confidential file*):
§ 87(2)(a) PBH §18(6)

§ 87(2)(b) (*encl. PM26-192/confidential file*):
§ 87(2)(a) PBH §18(6)

§ 87(2)(b) and § 87(2)(b)
On § 87(2)(b), § 87(2)(b) and § 87(2)(b) visited § 87(2)(b) complaining of back pain. § 87(2)(a) PBH §18(6)

NYPD Documents

SPRINT (encl. 32A-D)

At 4:13 p.m., a radio call was transmitted reporting an ambulance case of an emotionally disturbed person located inside of § 87(2)(b) § 87(2)(b). Multiple units from housing responded, as well as supervisors from the 73rd Precinct. At 4:20 p.m., A housing sergeant requested ESU to arrive at location to bag the individual. On § 87(2)(b) EMS arrived on scene, and at § 87(2)(b) the EDP was transported to § 87(2)(b). At 5:02 p.m., the 73rd Precinct supervisor radioed that the 72nd Detective Squad arrested an individual.

Emergency Service Unit (ESD2) Report (encl. 33A-C)

On March 21, 2013, a PSA2 Sergeant called for ESU services to physically subdue an emotionally disturbed person (EDP) at § 87(2)(b) (a multiple dwelling). Two ESU officers, from ESS7, arrived at location at 4:14 p.m. They subdued the EDP with velcro straps, and removed to § 87(2)(b). At 4:30 p.m., the assignment was completed.

Arrest for Incident and Disposition

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

(encl. 45A-E).

Status of Civil Proceedings

- § 87(2)(b) § 87(2)(b), § 87(2)(b) and § 87(2)(b) have not filed a notice of claim with the City of New York as of July 31, 2014 with regard to the incident (encl. 46A).

Civilians Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b)

- § 87(2)(b) filed a CCRB complaint in § 87(2)(b)
- This is the first CCRB complaint in which § 87(2)(b) and § 87(2)(b) have been involved (*encl. 2C-D*).

Subject Officers CCRB History

- Sgt. Omar Birchwood has been a member of the service for six years and there are no substantiated CCRB allegations against him (*encl. 1A-B*).
- Lt. Janice Holmes has been a member of the service for twenty years and there are no substantiated CCRB allegations against her (*encl. 1C*).
- Det. Burchette has been a member of service for twenty-one years and there are no substantiated CCRB allegations against him (*encl. ID*)
- PO Gregory Jurkowich has been a member of the service for two years and there are no substantiated CCRB allegations against him. This is his first complaint (*encl. 1E*).

Conclusion

Identification of Subject Officers

Several different or unidentified officers allegedly used force against § 87(2)(b), § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) identified a middle-aged black male officer, of possibly Jamaican or Haitian Descent, thin, dressed in uniform as the officer who had punched, kicked, and used his asp against § 87(2)(b) Sgt. Birchwood, of PSA2, acknowledged that he was one of the officers who attempted to handcuff § 87(2)(b) § 87(2)(g)

§ 87(2)(b), § 87(2)(b), § 87(2)(b) stated that a heavyset uniformed female officer spoke discourteously to § 87(2)(b) However, § 87(2)(b) stated that the female officer was white, and § 87(2)(b) and § 87(2)(b) stated that the female officer was black. In addition, the officers interviewed did not recall any overweight female officer on scene.

§ 87(2)(g)

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) identified a black female officer with a white shirt on scene, who had spoken discourteously to § 87(2)(b) Lt. Holmes also acknowledged that she was present on scene, and she is a black female who was wearing a white shirt.

§ 87(2)(g)

Det. Burchette acknowledged that he had spoken to § 87(2)(b) when she was recording with her cell phone. § 87(2)(g)

§ 87(2)(b) alleged that an officer who travelled with him to § 87(2)(b) spoke discourteously to him. He described the officer as a hispanic male, twenty-five to twenty- seven years old, black hair in a faded haircut, approximately 170 and 180 pounds, 5'9"-5'10" tall, and had no facial hair. The officers that travelled with § 87(2)(b) were identified by shield

number in his § 87(2)(b) Medical Records. The officers were PO Sardar Mamun and PO Gregory Jurkovich, of PSA 2. Their memo books and interview statements acknowledged that they were the only officers who travelled with § 87(2)(b) to § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) and § 87(2)(b) alleged that multiple officers struck § 87(2)(b) with asps. However, § 87(2)(b) alleged that only Sgt. Birchwood did so. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Force: Officers used physical force against § 87(2)(b), § 87(2)(b), and § 87(2)(b) inside of § 87(2)(b) in Brooklyn.

Upon the arrival of the responding uniformed units, § 87(2)(b) who was standing in front of § 87(2)(b) alleged that a female officer pulled and pushed her away from § 87(2)(b) and instructed her not to move. As officers surrounded § 87(2)(b), § 87(2)(b) and § 87(2)(b) remained adjacent to § 87(2)(b). § 87(2)(b) pleaded with § 87(2)(b) to calm down. § 87(2)(b) was crying and screaming, pleaded with the officers to not hurt her son.

A female officer then allegedly pushed § 87(2)(b) against the wall, and instructed him not to move while Sgt. Birchwood, pushed § 87(2)(b) and told her to shut up and not to move. Sgt. Birchwood also allegedly grabbed § 87(2)(b)'s upper arms, told her to calm down or remove herself to another room.

The officers denied pushing any civilians. They stated that they were only focused on handcuffing § 87(2)(b) who was resisting arrest. § 87(2)(g)

Det. Wakefield and Det. Burchette stated that § 87(2)(b) was yelling at § 87(2)(b) and pacing back and forth during his apprehension.

As a result, § 87(2)(b) sustained a small bruise on her right forearm and back pain. Both § 87(2)(b) and § 87(2)(b) sustained back pain.

§ 87(2)(g)

§ 87(2)(g)

Allegation B- Force: Sgt. Omar Birchwood used physical force against § 87(2)(b) inside of § 87(2)(b) in Brooklyn.

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While § 87(2)(b) was admittedly resisting multiple officers' attempts to handcuff him, he alleged that Sgt. Birchwood kicked him three times behind his knee, and punched him once behind his head. Sgt. Birchwood denied that he had punched and/or kicked § 87(2)(b) but rather grabbed onto § 87(2)(b)'s arms and place them on his back to restrain and handcuff him.

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) § 87(2)(g) stated that multiple officers, rather than one, punched and kicked him several times, behind his knees and in his midsection. The remaining officers § 87(2)(g)

denied that any officer, including Sgt. Birchwood, punched and/or kicked § 87(2)(b) at any point during the incident.

§ 87(2)(b)'s medical record revealed that he had no bruising or discoloration.

The NYPD Patrol Guide 203-11(*encl. A-C*) indicates that an officer should use the minimum force necessary to maintain control, overcome resistance when effecting an arrest, or to restrain a subject whose actions or behavior may cause injury to themselves or others.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation C- Force: Sgt. Omar Birchwood struck § 87(2)(b) with an asp inside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that Sgt. Birchwood stuck him, once, on his right upper arm with his asp.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Sgt. Birchwood denied using his asp at any time. As previously mentioned, he stated that he only used § 87(2)(b)'s arms to bring him to the ground and handcuff him. § 87(2)(g)

§ 87(2)(b)'s medical records indicated that there were no visible injuries, and the x-rays taken of his right upper humerus, shoulder, and bicep revealed no deformities, fractures, and/or dislocations. On § 87(2)(b), a photograph of § 87(2)(b)'s right bicep was taken and revealed a small bruise.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation D- Discourtesy: An officer spoke discourteously to § 87(2)(b) inside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that when he was on the floor and being handcuffed, an overweight white female officer placed her knee on his back and told him to shut the “fuck” up.

§ 87(2)(b) and § 87(2)(b) both present and in close proximity to § 87(2)(b) denied that any officer used any profanity towards § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Allegation E- Discourtesy: Lt. Janice Holmes spoke discourteously to § 87(2)(b) inside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that Lt. Holmes told § 87(2)(b) to shut the “fuck” up, and not to cry for her son because he was an animal. § 87(2)(b) later altered the allegation stating that Lt. Holmes told § 87(2)(b) that her son was a “fucking” animal, omitting that she had told § 87(2)(b) to shut the “fuck” up.

§ 87(2)(g)

§ 87(2)(b) stated that a hispanic female spoke to § 87(2)(b) in English, but she did not understand what was said.

Lt. Holmes denied speaking to any civilians, adding that she only spoke to Det. Wakefield and Det. Burchette, during her brief visit to the incident location.

§ 87(2)(g)

Allegation F- Abuse of Authority: Det. John Burchette threatened to arrest § 87(2)(b) in front of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that Det. Burchette threatened to arrest her, when she recorded ESU bagging § 87(2)(b)

§ 87(2)(b) stated that Det. Burchette told her something in English, but she did not understand. § 87(2)(b) who was near, translated for her, and stated that Det. Burchette informed her to stop recording or he would arrest her. § 87(2)(g)

Det. Burchette denied that he threatened to arrest § 87(2)(b) § 87(2)(g)

Additional officers, with the exception of Lt. Holmes, recalled an individual recording with a cell phone, but could not recall if any officer spoke to the individual or threatened to arrest the individual.

§ 87(2)(g)

Allegation G: Discourtesy: PO Gregory Jurkovich spoke discourteously to § 87(2)(b) inside of § 87(2)(b)

§ 87(2)(b) alleged that once he arrived at § 87(2)(b) he informed PO Jurkovich that the handcuffs were tight. PO Jurkovich responded, that he was not doing anything for § 87(2)(b) because he was an “asshole.” PO Jurkovich had no recollection of this conversation and denied stating the above comment or using any profanity against § 87(2)(b) PO Mamun, PO Jurkovich’s partner, did not have any independent recollection of the incident, and was unable to confirm or deny the above allegation. There were no other witnesses present, during this interaction.

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

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